



COMMERCIAL LEASE ADDENDUM FOR CONTINGENCIES

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ADDENDUM TO THE COMMERCIAL LEASE BETWEEN THE UNDERSIGNED PARTIES CONCERNING THE LEASED PREMISES AT _____

The lease may be terminated by Tenant upon notice to Landlord prior to the expiration of the applicable contingency period if the contingencies indicated below are not fulfilled. In the event of such termination, Landlord will return the security deposit and any prepaid rent to Tenant.

☐ A. Lender Subordination Agreement

- (1) The lender subordination agreement contingency expires on: _____.
- (2) Tenant may terminate the lease in the event Landlord fails to obtain a subordination, non-disturbance and attornment agreement (SNDA) on terms reasonably acceptable to Tenant from the holder of any existing mortgage, deed of trust or other lien. Tenant will sign the SNDA to evidence the subordinate position of the lease and Tenant's agreement to attorn to such holder.

☐ B. Occupancy Certificate

- (1) The Occupancy Certificate contingency expires on: _____.
- (2) Tenant may terminate the lease in the event a certificate of occupancy or similar certificate is not obtained and such certificate is required by a local governmental agency prior to occupancy or operation in the leased premises by Tenant. If Tenant is responsible for obtaining the certificate, this paragraph will only be applicable if Tenant has used diligent, good faith, commercially reasonable efforts to obtain the certificate.

☐ C. Permits and Licenses

- (1) The permits and licenses contingency expires on: _____.
- (2) Tenant may terminate the lease in the event Tenant is unable, after using diligent, good faith, commercially reasonable efforts to obtain all governmental issued licenses, permits and approvals for the operation of Tenant's business in the leased premises.

☐ D. Sign Permits

- (1) The sign permit contingency expires on: _____.
- (2) Tenant may terminate the lease in the event Tenant is unable, after using diligent, good faith, commercially reasonable efforts to obtain all governmental issued licenses, permits and approvals for the operation of Tenant's business in the leased premises.

☐ E. Title Review

- (1) The title review contingency expires on: _____.

- (2) Tenant, at Tenant's expense may obtain a title insurance commitment and a survey of the leased premises. Tenant may terminate the lease in the event the title insurance commitment or the survey discloses any matters that constitute a defect or encumbrance to title, or other matters that would limit Tenant's use of the leased premises and Landlord fails to satisfy such items 10 days prior to the expiration of the title review contingency period.

☐ E. Other

Landlord: _____

By: _____

By (signature):

Printed Name: _____

Title: _____

By: _____

By (signature):

Printed Name: _____

Title: _____

Tenant: _____

By: _____

By (signature):

Printed Name: _____

Title: _____

By: _____

By (signature):

Printed Name: _____

Title: _____